

demand. They filed this Motion on January 23, 2026. The Court received no timely opposition. It would appear that Defendant has failed to comply with its discovery obligations. Defendant is ordered to provide initial disclosures pursuant to section 2016.090 within 15 days of the date of hearing. Defendant is also ordered to pay \$1,500 in sanctions within 30 days of the date of hearing. C.C.P. § 2023.030.

10. 9:00 AM CASE NUMBER: C25-01307
CASE NAME: MARKEE WEBB VS. SAN PABLO MEDICAL CENTER
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: SAN PABLO MEDICAL CENTER

TENTATIVE RULING:

The Demurrer of Defendants Jim Pehling, M.D. (erroneously sued as Jim Phlying) and San Pablo Medical Center to the First Amended Complaint of Plaintiff Markee Webb is **sustained, with leave to amend**.

BACKGROUND

Plaintiff Markee Webb filed his original complaint against Jim Pehling, M.D. and San Pablo Medical Center on May 8, 2025, using a Judicial Council form complaint for breach of contract. The complaint attaches medical records from West County Health Center reflecting two visits. In January 2024, Plaintiff was seen for health care maintenance, depression, and obesity. In May 2024, Plaintiff was seen for a cerebrovascular accident and hypertension, resulting in medication changes and advice to lose weight. Paragraph five of the form complaint, which calls for an allegation of compliance with the Government Claims Act (GCA), was left blank.

The record does not reflect a proof of service of the original complaint. Nevertheless, Defendants filed and served a demurrer to the original complaint on June 16, 2025, noticed for hearing on October 16, 2025. Before that hearing occurred, Plaintiff filed and served a first amended complaint (FAC) on October 3, 2025, mooting the demurrer. As with the original complaint, Plaintiff's FAC does not allege compliance with the GCA.

Plaintiff presented a government claim to the Clerk of the Board of Supervisors of Contra Costa County on or about September 23, 2025. In response to the claim form's question "When did the damage or injury occur," Plaintiff wrote "1/5/24 - and ongoing." The Clerk rejected the claim on October 8, 2025 on the ground that it was not presented within six months after the event or occurrence as is required by Government Code sections 901 and 911.2. The Clerk's notice advised Plaintiff that his "only recourse at this time is to apply without delay to the Board of Supervisors of Contra Costa County for leave to present a late claim" under Government Code sections 911.4 to 912.2 and 946.6. It does not appear that Plaintiff filed an application with the County for leave to present a late claim.

Defendants demur to the FAC that Plaintiff failed to allege facts demonstrating or excusing compliance with the GCA. Defendants argue that no amendment can cure this defect because plaintiff filed suit before presenting any claim, and because the claim itself was presented outside the six-month period set by Government Code section 911.2, measured from an accrual date of January 5, 2024.

Defendants assert that a plaintiff cannot file suit and then present a claim to cure the defect after the fact.

In opposition, Plaintiff submits his own declaration stating that he suffered two strokes that caused cognitive impairment affecting his ability to understand legal deadlines or comply with filing requirements. Plaintiff states he had no legal assistance or family support during this period of incapacity, and that his failure to file a government claim was caused by medical incapacity. The declaration does not reference any government claim presented before the original complaint was filed on May 8, 2025, nor any claim other than the one presented in September 2025.

Defendants do not further address the timeliness of Plaintiff's government claim in their reply, but instead argue that nothing in Plaintiff's declaration excuses his having filed suit before presenting a government claim.

ANALYSIS

I. Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading "by raising questions of law." (*Postley v. Harvey* (1984) 153 Cal.App.3d 280, 286.) The court "treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law" (*Berkley v. Dowds* (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (*Picton v. Anderson Union High School Dist.* (1996) 50 Cal.App.4th 726, 733.)

"If there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245.)

II. Meet and Confer

Code of Civil Procedure section 430.41 requires that "[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc. § 430.41, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., § 430.41, subd. (a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

The demurrer is not accompanied by a meet and confer declaration as required by section 430.31. Thus, the court is unable to determine whether the parties met and conferred. The Court will proceed to analyze the demurrer on its merits. (See Code Civ. Proc. § 430.41, subd. (a)(4) ["[a] determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer."].) However, a failure to comply in the future may result in the demurrer being

placed off calendar.

III. Request for Judicial Notice

Defendants' request for judicial notice of Plaintiff's government claim for damages submitted to the Clerk of the Board of Supervisors of Contra Costa County on or about September 23, 2025 is unopposed, and is granted. The court may take judicial notice of the filing and contents of a government claim, but not the truth of the claim. (See Evid. Code, § 452, subd. (c); *Ludwig v. Superior Court* (1995) 37 Cal.App.4th 8, 14; *Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 368, fn. 1.)

Accrual for purposes of the GCA is the date that would apply under the statute of limitations governing a dispute between private litigants (*Shirk v. Vista Unified School Dist.* (2007) 42 Cal.4th 201, 208–209), which for a medical malpractice claim is governed by Code of Civil Procedure section 340.5. The Court takes notice of what the claim states, including the date Plaintiff identified in response to the claim form's question asking when the damage or injury occurred, but it does not take notice of that date as the legally operative date of accrual.

IV. Discussion

A preliminary note regarding the individual defendant. The claims presentation requirement applies to a suit against a public employee for acts within the scope of employment. (Gov. Code § 950.2.) The FAC designates the medical center as a public entity but does not expressly allege that Dr. Pehling is its employee. Defendants nonetheless characterize this relationship as "undisputable." (MPA, p. 3:15-20 ["Dr. Pehling is undisputably an employee of a public entity (FAC ¶4)"].) Paragraph four does not say that. Still, the medical records attached to the FAC show that Dr. Pehling treated Plaintiff at the West County Health Center, a Contra Costa Health facility. The Court will treat the claims presentation requirement as applicable to both Defendants unless and until Plaintiff alleges otherwise. If Plaintiff takes the position that Dr. Pehling was not a public employee acting in the scope of his employment, he should state that in any amended complaint he files.

"[Government Code] [s]ection 905 requires the presentation of 'all claims for money or damages against local public entities,' subject to exceptions not relevant here." (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 737-738, City of Stockton.) Government Code section 945.4 provides that "no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented ... until a written claim therefor has been presented to the public entity and has been acted upon ... or has been deemed to have been rejected...." "Thus, under these statutes, failure to timely present a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that entity." (*City of Stockton, supra*, 42 Cal.4th at pp. 737-738 [quoting *State of California v. Superior Court (Bodde)* (2004) 32 Cal.4th 1234, 1239].)

"Unless a specific exception applies, [a] suit for 'money or damages' includes all actions where the plaintiff is seeking monetary relief, regardless whether the action is founded in tort, contract or some other theory." (*Lozada v. City and County of San Francisco* (2006) 145 Cal.App.4th 1139, 1152.)

"Timely claim presentation is not merely a procedural requirement, but is.... an element of the plaintiff's cause of action.... [¶] Only after the public entity's board has acted upon or is deemed to have rejected the claim may the injured person bring a lawsuit alleging a cause of action in tort against the public entity." (*Shirk, supra*, 42 Cal.4th at p. 209, superseded by statute on other grounds

as stated in *Rubenstein v. Doe No. 1* (2017) 3 Cal.5th 903, 905-906.)

The FAC does not allege compliance with the GCA. Paragraph five of the Judicial Council form, which calls for this allegation, is blank. This omission is independently sufficient to sustain the demurrer. (*Bodde, supra*, 32 Cal.4th at p. 1239.) The remaining question is whether Plaintiff can amend his pleading to allege that he complied with the CGA or was excused from complying.

A. Timeliness

Defendants' moving papers argue that Plaintiff's government claim was untimely, measured from the "1/5/24" date he wrote on his claim form. Untimeliness is not established on this record. Untimeliness must appear on the face of the complaint or from matters properly subject to judicial notice and the date written on the claim form does not establish accrual as a matter of law. That date corresponds to an office visit; the stroke Plaintiff attributes to the visit occurred months later. Accrual of a medical malpractice claim is a substantive determination governed by Code of Civil Procedure section 340.5, which no party has briefed. The most that can be said with confidence is that Plaintiff had discovered his injury and its claimed wrongful cause no later than May 8, 2025, when he filed this action, designating it a medical malpractice matter on the civil case cover sheet. Measured from that date, the September 2025 claim would fall within section 911.2's six-month period.

Because untimeliness is not established as a matter of law, this is not grounds to sustain the demurrer.

B. Prematurity

Government Code section 945.4 provides that no suit may be brought against a public entity until a claim has been presented and has been acted upon or deemed rejected. Plaintiff filed his original complaint on May 8, 2025. He did not present any claim until on or about September 23, 2025, more than four months later. His declaration does not reference any earlier claim. Instead, it describes a period of incapacity that includes, but is not limited to, that date, and appears to concede that the September 2025 claim was the only one he presented. Defendants argue that filing suit prematurely and before submitting a government claim is a defect that cannot be cured.

In *Lowry v. Port San Luis Harbor Dist.* (2020) 56 Cal.App.5th 211, 215-16 (Lowry), the court reviewed a trial court's grant of judgment on the pleadings, where the plaintiff filed a complaint and a petition to file a late claim on the same day. The Court held "[the plaintiff] failed to comply with the Act because he filed a complaint before his claim was rejected". (*Lowry, supra*, 56 Cal.App.5th at p. 219.) The court declined to follow "older Court of Appeal cases that found compliance with the Act even though complaints were filed prematurely, before the claims were rejected ... [because] the rationale of those cases is not consistent with more recent decisions of our Supreme Court." (*Ibid.*) Specifically, it held that the California Supreme Court's decision in *DiCampli-Mintz v. County of Santa Clara* (2012) 55 Cal.4th 983 (DiCampli-Mintz) "requires that claims 'satisfy the express ... language of the statute.'" (*Id.* at p. 220 [quoting *DiCampli-Mintz, supra*, 55 Cal.4th at p. 987].) Because it rejected substantial compliance, the court held, "[The plaintiff's] noncompliance with the Act cannot be cured by amending the complaint to allege he complied." (*Id.* at p. 221.)

The doctrine of substantial compliance provides an exception. In *Malear v. State of California* (2023) 89 Cal.App.5th 213, the plaintiff presented a government claim on July 15, 2020, and filed his original

complaint on July 27, 2020, after presenting the claim, but before it had been actually or deemed rejected. (*Id.* at p. 219.) The claim was rejected two days later. (*Ibid.*) Nearly three months after that rejection, the plaintiff filed a first amended complaint, as of right under Code of Civil Procedure section 472, adding allegations that his claim had since been denied, and this occurred before defendants had been served with either complaint. (*Id.* at pp. 219, 221.)

The court stated that because "an amended complaint supersedes all prior complaints," the original "cease[d] to have any effect either as a pleading or as a basis for judgment," and because "the mere filing of a premature complaint does not... cause the public entity to incur litigation costs, since the deadlines and burdens of litigation are triggered by service of process," the lawsuit "did not begin in earnest" until service of the amended complaint, by which point the entity's investigation and consideration of the claim was complete. (*Id.* at pp. 221, 224–225.) The court stated that substantial compliance will apply "if the original complaint is not served before an amended complaint alleging the requisite denial of a government claim is filed." (*Id.* at pp. 225–226.)

In *Harland v. City of West Hollywood* (2026) 120 Cal.App.5th 1166, decided after Defendants filed their opening memorandum but before the reply, the Court of Appeal applied *Malear's* test and found substantial compliance unavailable where the plaintiff had served her original complaint before filing an amended complaint alleging denial of her claim, reasoning that the plaintiff had "deprived the City of the opportunity to investigate her claim before forcing it into litigation." (*Id.* at pp. 1171–1172.)

Plaintiff's circumstances do not appear to fit within *Malear's* exception as currently pled. Unlike the plaintiff in *Malear*, plaintiff appears to have presented no claim before filing suit. Unlike the amended complaint in *Malear*, which alleged that the claim had been presented and denied, the FAC does not allege that any claim was presented. Whether defendants were served with the original complaint is not established on this record. If it was served, it would appear that *Malear* and *Harland* foreclose the substantial compliance doctrine.

The Court does not resolve that question because it is not yet presented. At the pleading stage, an allegation of compliance with the applicable claims statutes is sufficient. (*Esparza v. Kaweah Delta Dist. Hospital* (2016) 3 Cal.App.5th 547, 554.) The problem is that Plaintiff has alleged nothing at all. If Plaintiff amends to allege compliance, Defendants may renew the argument by demurrer or other appropriate motion, at which point the court can decide whether the allegation survives.

C. Leave to Amend

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Youngman, supra*, at p. 245.)

The Court is not prepared to find, as a matter of law, that no amendment could cure the defects in the FAC. The failure to allege compliance or excuse is itself curable, and Plaintiff, who is self-represented, has not had to plead compliance or excuse in response to a ruling on the merits of a demurrer. Plaintiff should have the opportunity to allege his compliance with the GCA or excuse for noncompliance, including facts concerning his claimed incapacity.

DISPOSITION

Defendants' demurrer is **sustained, with leave to amend**. Defendants shall prepare the order and file and serve notice of its entry. Plaintiff has 45 days from notice of entry of order in which to file and serve an amended complaint. As with any self-represented litigant, Plaintiff may wish to consult an attorney regarding this matter.

11. 9:00 AM CASE NUMBER: C25-02858
CASE NAME: CHRISTOPHER DOUANGMALA VS. WILLIAM TURMAN
HEARING ON DEMURRER TO: RE 1ST AMENDED COMPLAINT
FILED BY: TURMAN, WILLIAM
TENTATIVE RULING:

Defendants United Parcel Service, Inc. and William Turman's demurrer to the first amended complaint is **overruled as to two, three and eleven, and sustained with leave to amend as to one, four, six, seven, eight and twelve**. Plaintiff may file and serve an amended complaint within 10 days of notice of entry of this order.

Plaintiff worked at UPS since 2012. (FAC ¶12.) Plaintiff worked as a business supervisor from 2017 to 2024 and his evaluations showed steady, positive performance. (FAC ¶14.)

Plaintiff alleges that in early 2025, he and his partner welcomed their first child. (FAC ¶15.) Plaintiff applied for and was granted paternity leave under CRFA from February 11, 2025, to March 3, 2025, and from April 15, 2025, to May 3, 2025. (FAC ¶16.) When Plaintiff returned to work in April 2025, he learned that UPS was shutting down his work site. (FAC ¶19.)

Plaintiff requested additional paternity leave. Plaintiff's manager, Turman, told Plaintiff "that it was not a good time for Plaintiff to take leave" and instead encouraged him to apply for jobs given the impending facility closure. (FAC ¶20.) Plaintiff still applied for additional leave and took two weeks of paternity leave. (FAC ¶¶20-21.) While on leave, Plaintiff sought alternative roles at UPS and was granted an interview. (FAC ¶¶22-23.) Plaintiff was informed that he did not get the position and was also told that he was not selected for interviews for any other business supervisor roles in the area. (FAC ¶¶23-24.) Plaintiff was referred to interview for alternative roles that were not comparable or appropriate. (FAC ¶25.)

On June 30, 2025, Plaintiff's employment was terminated. (FAC ¶26.) Plaintiff was the only supervisor in his group who was not offered a comparable position following the restructuring, despite his strong performance history. (FAC ¶27.) Every other employee at his location received another position at UPS. (FAC ¶28.) UPS is actively hiring employees for many positions, including business supervisors. (FAC ¶29.)

Defendants demur to the following causes of action based upon the failure to state sufficient facts to constitute a cause of action and on uncertainty, Code of Civil Procedure section 430.10(e) and (f): (1) interference with CFRA, (2) retaliation under CFRA, (3) FEHA sex discrimination, (4) FEHA